

ROGGE FILES A LIEN ON RED BAIL FUNDS

**Seeks Fee From Impounded
Money—Acts to Bare Civil
Rights Congress Records**

To collect his fee for defending a former left-wing labor leader, O. John Rogge has filed a lawyer's lien for \$15,000 of Civil Rights Congress funds now being held by the Federal Government and the state.

In Federal Court yesterday Mr. Rogge filed a notice to take depositions on Feb. 25 from William L. Patterson, national executive secretary of the Civil Rights Congress, and three trustees of the Civil Rights Congress Bail Fund, Abner Green, W. A. Hunton and Dashiell Hammett.

Mr. Rogge also will try to do what the Government failed to do—force the trustees to bring in their records, books, membership list and list of contributors to the bail fund. The three trustees served six-month contempt of court sentences for failing to produce this information.

Refused to Produce Files

When four of the eleven convicted Communist leaders failed to surrender last July to begin their conspiracy sentences, Federal Judge Sylvester Ryan forfeited \$60,000 bail furnished by the bail fund. He then brought the trustees into court to ascertain whether any of the contributors knew where the fugitive Communist leaders were. The trustees were directed to produce their records before a grand jury. When they refused, they were sentenced to jail.

Thereupon, all bonds posted by the organization were rescinded. This action was upheld by the United States Supreme Court.

The history of Mr. Rogge's present action began on March 1, 1947, when Harold R. Christoffel, 40-year-old former president of the C. I. O.-United Automobile Workers local at the Allis-Chalmers Manufacturing Company plant in Milwaukee, denied before the House Committee on Education and Labor that he had ever been a member of the Communist party.

Shortly thereafter he was indicted in Washington for perjury and his international union posted

a \$5,000 cash bond. Christoffel went on trial in February, 1948, with Mr. Rogge as defense counsel. The labor leader was convicted, although Mr. Rogge contended he should not have been indicted on his testimony because a legal quorum of the committee was not present for the testimony. After Christoffel's conviction the international withdrew the bond, and the Civil Rights Congress Bail Fund posted a like amount.

Appeal Decision Pending

Mr. Rogge took the case to the Supreme Court, where it was returned to the lower tribunal on the question of the quorum. In February, 1950, at a second trial, Christoffel again was convicted. His bail was revoked, but on motion for appeal new bail of \$10,000 was fixed. The bail fund also supplied this amount. The appeal was argued last October and the Court's decision is still pending.

On Nov. 29, 1951, the New York State Banking Department asked Mr. Rogge to turn over to it the original \$5,000 bail supplied by the bail fund. He did so. The following day he received a letter from Christoffel saying he wished to dispense with Mr. Rogge's services.

Mr. Rogge said he had been advised by Christoffel and the Civil Rights Congress that he would receive a reasonable fee, but as yet had received nothing. Mr. Rogge contends there is no distinction between the Civil Rights Congress and its bail fund. He said that the bail fund is under the control and domination of the congress.